

BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALUCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY, QUETTA

PRC APPEAL No.22/2025

M/S Inayat Ullah Khan Achakzai & Brothers, Government Contractor,
Through its Authorized Representative,
Mr. Inayat Ullah Son of Muhammad Hayat

.... Appellant

Versus

1. Government of Balochistan, Secretary Local Government,
Civil Secretariat, Zarghoon Road Quetta.
2. Assistant Director Local & Rural Development Department, Killa Abdullah.
3. Chairman CRC Committee.
4. Director General Local Government, Balochistan, Quetta.

.... Respondents

Quorum

1. Habib ur Rehman Jamot.....MD BPPRA / Chairman
2. Mubashir Ali Khan (FCIPS).....Procurement Specialist (Goods & Services) BPPRA /Member
3. Junaid Shah.....Procurement Specialist (Works) BPPRA /Member
4. Ifikhar Ahmed Mir.....Retd. Chief Engineer /Technical Member
5. Syed Muheebullah.....Advocate /Private Member

APPEAL UNDER RULE-56-A OF THE BPP RULES AGAINST TSE No. 252608822223

For the Appellant:

Mr. Abdul Basit Tareen, Advocate

For the Respondents No. 1 to 3:

1. Mr. Abdul Rauf Khetran, Director (Technical), LG & RD Department.
2. Mr. Noor Ullah Kakar, Assistant Director, LG & RD Department Killa Abdullah.

DECISION ANNOUNCED ON 12-11-2025

Brief Facts:

1. The Appellant, in his capacity as a bidder, participated in the tender titled **"Bore with Solar in Killi Khorkai Kakoza, District Killah Abdullah"** with estimated approved budget of PKR. 10- Million, advertised vide TSE No. 252608822223 on the BPPRA ePPS by Respondent No. 2, adopting the Single Stage – Two Envelope bidding procedure under the Least Cost Selection Method.

Grounds of Appeal:

2. The Appellant submitted that he duly participated in the aforementioned tender after submission of the required Challan, Call Deposit, and other relevant documents. He, however, challenged his disqualification on the ground that his attendance was not duly marked. The Appellant further alleged that the Procuring Agency failed to open the bids on the scheduled date and subsequently prepared a fabricated or "ghost" attendance sheet.

Proceedings Before the Committee:

3. The Appellant appeared before this Committee and submitted that he had timely approached the CRC by filing a grievance application dated 19.10.2025. However, despite issuance of multiple notices, the said Committee failed to adjudicate the matter within the time frame prescribed under the BPPRA Rules, 2014. Instead of deciding the complaint, the CRC addressed a letter to the Director General, Local Government, stating that the matter stood "resolved" following notices to the Procuring Agency.

Response of the Respondents:

4. The Representatives of the Respondents appeared before this Committee but failed to submit para-wise comments. They merely produced the manual and system-generated attendance sheets retrieved from the BPPRA portal. Upon being confronted with the Appellant's allegations, they were unable to provide a satisfactory explanation.

Committee's Observation:

5. Upon scrutiny, this Committee observed glaring discrepancies between the manual attendance sheet and the system-generated record. When queried regarding the inconsistency, the Respondents contended that the variance occurred due to "network issues," an explanation found to be wholly unsatisfactory.

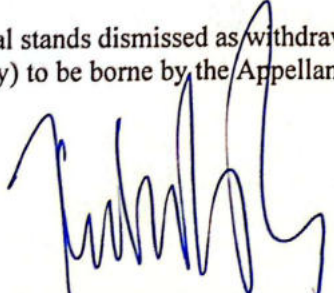
Observations and Directions:

6. While the Appellant's withdrawal has rendered the principal challenge infructuous, this Committee is nevertheless duty-bound to record its observations on the grave procedural irregularities committed by the Procuring Agency, which appear to be recurring within the Local Government and Rural Development Department.
7. The act of the Procuring Agency in maintaining contradictory records (manual versus digital) and employing a non-standardized attendance list is hereby declared illegal, arbitrary, and violative of the principles of transparency, fairness, and equality enshrined under the Public Procurement Rules.

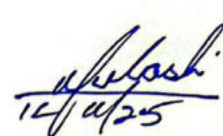
Order:

8. During the pendency of the proceedings, learned counsel for the Appellant verbally sought unconditional withdrawal of the appeal. Considering the provisions of Regulation 16(2), this Committee permitted withdrawal of the same. However, given the advanced stage of proceedings and the administrative resources already expended, the Committee finds it just and proper to impose costs upon the Appellant.

Accordingly, the Appeal stands dismissed as withdrawn, with costs of PKR 100,000/- (Rupees One Hundred Thousand only) to be borne by the Appellant.


Habib Ur Rehman Jamot

12/11/2025


Mubashir Ali Khan (FCIPS)


Engr. Junaid Shah


Eng Iftikhar Ahmed Mir


Syed Muheebullah